compromise solution following an agreement with the complainant. The high court saw good reasons for these distinctions. Unlike Parsis and Christians (among whom monogamous relationships were well established), monogamy had been imposed as a measure of social reform among Hindus. The court also noted that it was quite likely that a forbearing Hindu wife would refuse to make a complaint, or in any event would agree to compromise or withdraw that complaint once made. The judges therefore concluded that a more robust law for the Hindus was understandable and justified. This line of reasoning was tenuous in assuming that a Hindu wife was less likely to make a complaint than a Parsi or Christian wife.

Muslims were in a still different position. Bigamy among Muslims was an offence neither under the Bombay law nor under the IPC. This difference in the application of the law prompted, in the words of Chief Justice Chagla, C.K. Shah to make an argument of 'great ingenuity'.[7] Polygamy was permitted by uncodified personal law among Muslim men at the time of Independence and when the Constitution came into force. Apart from the states where it was specifically prohibited before Independence, bigamy was likewise permitted by uncodified personal law among Hindu men at the time. Shah argued that once the Constitution came into force on 26 January 1950, Muslim personal law permitting polygamy as well as Hindu personal law permitting bigamy was inconsistent with fundamental rights under the Constitution and, therefore, invalid. The inconsistency arose from the fact that it discriminated between men and women, by permitting Muslim and Hindu men (but not women) to have more than one spouse. Therefore, according to Shah, even though the Constitution changed the status quo for both Hindu men and Muslim men, the Bombay law only applied to Hindus. In these circumstances, the Bombay law was unconstitutional for singling out and criminalizing bigamy among Hindus and excluding Muslims.

This argument was reliant on the language of Article 13 of the Constitution, which was part of the chapter on fundamental rights. Under Article 13, '[a]ll laws in force in the territory of India' immediately before the commencement of the Constitution would be void to the extent that